NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH (COURT – I)

Item No.3

CA(CAA) No.13/Chd/Hry/2026

IN THE MATTER OF:

Malhotra Realty Private Limited .... Transferor Company

And

Spark Buildcon Private Limited ..... Transferee Company

Under Section: 230-232 of CA, 2013

Order delivered on 17.04.2026

CORAM:
SHRI. SHISHIR AGARWAL, HON'BLE MEMBER (T)
SHRI. K. BISWAL, HON'BLE MEMBER (J)

PRESENT:-

For the Applicant Company: Mr. Lokesh Dhyani, Advocate
Mr. G.S. Sarin, PCS
Mr. Satwinder Singh, Advocate

ORDER

CA(CAA) No.13/Chd/Hry/2026

1. This is an application seeking approval of merger of a wholly owned subsidiary with the parent Company under Sections 230–232 of the Companies Act, 2013.
2. Mr. Lokesh Dhyani, learned counsel for the Applicant Company attends and explains the matter.
3. **Order Reserved** with respect to maintainability of the petition.
4. Learned counsel for the Applicant is directed to file written submission along with relevant judgments on the issue of maintainability, particularly with regard to dispensation of meetings and in the absence of consent of the relevant stakeholders.

Sd/-
(SHISHIR AGARWAL)
MEMBER (TECHNICAL)

Sd/-
(K. BISWAL)
MEMBER (JUDICIAL)

Preeti